

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed: _____

DEVIN DAVIS,

INDEX NO. _____

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

-against-

S U M M O N S

THE CITY OF NEW YORK, NEW YORK CITY POLICE

DEPARTMENT, POLICE OFFICER "JOHN" SMITH, actual first
name unknown (Shield #29038), POLICE OFFICER "JOHN"
AUCIEDO, actual first name and shield # unknown and POLICE
OFFICER RAMON E. REYES (Shield #5312),The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
May 2, 2016

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza

Room 300

New York, New York 10038

JOHN SMITH (SHIELD #29038)

44th Precinct

2 East 169 Street

Bronx, New York 10452

JOHN AUCIEDO (SHIELD # UNKNOWN)

44th Precinct

2 East 169 Street

Bronx, New York 10452

RAMON E. REYES (SHIELD #5312)

44th Precinct

2 East 169 Street

Bronx, New York 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DEVIN DAVIS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER "JOHN" SMITH, actual first
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AUCIEDO, actual first name and shield # unknown and POLICE
OFFICER RAMON E. REYES (Shield #5312),

Defendants.

INDEX NO.

VERIFIED COMPLAINT

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, DEVIN DAVIS, at all times herein mentioned was and still is a
resident of the County of Bronx, City and State of New York.
2. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation,
incorporated pursuant to the laws of the State of New York, which operates the New York
City Police Department (hereinafter "NYPD"), and as such is the public employer of the
Defendant officers herein.
3. Defendant POLICE OFFICER "JOHN" SMITH (Shield #29038) was a NYPD
police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or
employee of Defendant CITY and within the scope of his employment.
4. Defendant POLICE OFFICER "JOHN" AUCIEDO (Shield #unknown) was a
NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant,
and/or employee of Defendant CITY and within the scope of his employment.

5. Defendant POLICE OFFICER RAMON E. REYES (Shield #5312) was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.

6. On or about April 30, 2013, the defendant POLICE OFFICER SMITH was assigned to the 44th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

7. On or about April 30, 2013, the defendant POLICE OFFICER AUCIEDO was assigned to the 44th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

8. On or about April 30, 2013, the defendant POLICE OFFICER REYES was assigned to the 44th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

9. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

10. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

11. At all relevant times, the defendant NEW YORK was responsible for the training of its police officers, and more particularly, the individually named defendants.

12. On April 30, 2013, the plaintiff DEVIN DAVIS was stopped by police officers on 168 Street and Fulton Avenue, Bronx, New York. He was thereafter arrested and detained at the 44th Precinct for several hours during which time he was strip searched before being released.

13. On April 30, 2013, the plaintiff DEVIN DAVIS was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendants.

14. On April 30, 2013, the plaintiff DEVIN DAVIS was arrested and charged with Penal Law § 140.05. All charges were dismissed on July 15, 2013.

15. Based upon information and belief, the officers, including the individually named defendants possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DEVIN DAVIS
Pursuant to § 1983 (FALSE ARREST)

16. Paragraphs 1 through 15 of this complaint are hereby realleged and incorporated by reference herein.

17. That Defendants had neither valid evidence for the arrest of DEVIN DAVIS nor legal cause or excuse to seize and detain him.

18. That in detaining DEVIN DAVIS and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. DEVIN DAVIS was but one of those persons.

19. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

20. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

21. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of DEVIN DAVIS's rights alleged herein.

22. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of DEVIN DAVIS's rights, subjected DEVIN DAVIS to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

23. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of DEVIN DAVIS's civil rights, including but not limited to the right to be free from being falsely arrested.

24. By reason of the foregoing, DEVIN DAVIS suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DEVIN DAVIS
Pursuant to §1983 (EXCESSIVE FORCE)

25. Paragraphs 1 through 24 are hereby realleged and incorporated by reference herein.

26. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

27. That Defendants had no legal cause or reason to use excessive force in effectuating DEVIN DAVIS's arrest or after DEVIN DAVIS was arrested and in custody.

28. That Defendants violated DEVIN DAVIS's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

29. That at the time of the arrest or while in custody, DEVIN DAVIS did not pose a threat to the safety of the arresting officers.

30. That DEVIN DAVIS was not actively resisting arrest or attempting to evade arrest.

31. That Defendant CITY, through its officers, agents, and employees, unlawfully subjected DEVIN DAVIS to excessive force while effectuating his arrest.

32. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

33. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of DEVIN DAVIS's rights, subjected DEVIN DAVIS to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

34. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of DEVIN DAVIS's civil rights, including but not limited to the right to be free from the application of excessive force.

35. That upon information and belief, in 2010, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

36. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

37. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

38. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of DEVIN DAVIS's rights alleged herein.

39. By reason of the foregoing, DEVIN DAVIS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

40. The aforementioned use of excessive force in effectuating the wrongful arrest and detention of the plaintiff by JOHN" SMITH, "JOHN" AUCIEDO and RAMON E. REYES, violated the plaintiff's constitutional rights.

41. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

42. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DEVIN DAVIS
Pursuant to § 1983 (MALICIOUS PROSECUTION)

43. Paragraphs 1 through 42 are hereby realleged and incorporated by reference herein.

44. That Defendants, with malicious intent, arrested DEVIN DAVIS and initiated a criminal proceeding despite the knowledge that DEVIN DAVIS had committed no crime.

45. That all charges against DEVIN DAVIS were terminated in his favor.

46. That there was no probable cause for the arrest and criminal proceeding.

47. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of DEVIN DAVIS's rights, deprived DEVIN DAVIS of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

48. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, DEVIN DAVIS was maliciously prosecuted despite the fact that he had committed no violation of the law.

49. That upon information and belief it was the policy and /or custom of defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

50. That as a result of the above described policies and customs, defendant CITY, its staff, agents and employees of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

51. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of DEVIN DAVIS's rights alleged herein.

52. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

53. That upon information and belief, in 2013, Defendant CITY had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

54. That by reason of the foregoing, DEVIN DAVIS suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

WHEREFORE, PLAINTIFF DEVIN DAVIS respectfully requests that judgment be entered:

1. Awarding PLAINTIFF DEVIN DAVIS compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding PLAINTIFF DEVIN DAVIS punitive damages in an amount to be determined by a jury;
3. Awarding PLAINTIFF DEVIN DAVIS interest from April 30, 2013 and
4. Awarding PLAINTIFF DEVIN DAVIS reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
May 2, 2016



By: Roberta D. Asher
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DEVIN DAVIS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER "JOHN" SMITH, actual first
name unknown (Shield #29038), POLICE OFFICER "JOHN"
AUCIEDO, actual first name and shield # unknown and POLICE
OFFICER RAMON E. REYES (Shield #5312),

Defendants.

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**ATTORNEY'S
VERIFICATION**

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

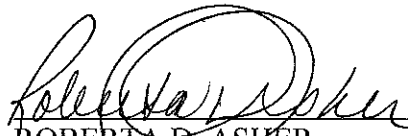
I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and
belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's
knowledge are correspondence had with the said plaintiff, information contained in the said
plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
May 2, 2016


ROBERTA D. ASHER

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DEVIN DAVIS,

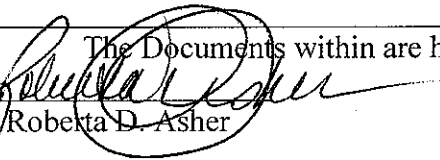
Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER "JOHN" SMITH, actual first name unknown (Shield #29038), POLICE OFFICER
"JOHN" AUCIEDO, actual first name and shield # unknown and POLICE OFFICER RAMON
E. REYES (Shield #5312),

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:
By 
Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the

within named Court on , 2016 .

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the

of the within named Court, at , New York, on , 2016 , at 9:30
A.M.

Dated: